

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ AUG 07 2008 ★
BROOKLYN OFFICE *[Signature]*

CHRISTOPHER OLIVER,

Plaintiff,

-against-

THE CITY OF NEW YORK, SEAN JOHNSTONE A/K/A
UNDERCOVER POLICE OFFICER # 360, POLICE
OFFICER JULIO ALVAREZ, shield # 7881, POLICE
OFFICER KEITH CARPENTER, shield # 6823, JOHN
DOES 1-10,

Jury Trial Demanded

ROSS, J.

Defendants.

----- X
PRELIMINARY STATEMENT

REYES, M.J.

1. This is an action brought pursuant to 42 U.S.C. § 1983 and New York state law alleging civil rights violations by the City of New York and individuals employed by the New York City Police Department ("NYPD") and the New York City Department of Correction ("DOC"). Plaintiff alleges that, on August 11, 2007, NYPD officers employed in the Brooklyn South Narcotics Division subjected him to false arrest, excessive force, assault, battery, an illegal strip search, fabricated evidence, and malicious prosecution in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution and New York state law. Plaintiff further alleges that, on or about August 12, 2007, DOC officers, pursuant to a policy, practice and custom of the City of New York, illegally strip searched him in violation of the Fourth and Fourteenth Amendments. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claims.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in this District. Moreover, venue is proper pursuant to 28 U.S.C. § 1391(b) because the acts at issue in this lawsuit took place in this District.

PARTIES

5. Plaintiff is a resident of the State of New York, County of Kings.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Sean Johnstone a/k/a Undercover Officer # 360 is a member of the NYPD's Brooklyn South Narcotics Division who was involved in the arrest of plaintiff and the torts arising out of plaintiff's arrest. Johnstone was acting under color state law and in his capacity as a NYPD officer at all relevant times herein. Johnstone is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from the unlawful conduct of his fellow officers. Johnstone was arrested for corruption on December 18, 2007 and is awaiting trial under indictment number 4825-2008. Johnstone is sued in his individual capacity.

8. Julio Alvarez is a member of the NYPD's Brooklyn South Narcotics Division who was involved in the arrest of plaintiff and the torts arising out of plaintiff's arrest. Alvarez was acting under color state law and in his capacity as a NYPD officer at all relevant times herein. Alvarez is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from the unlawful conduct of his fellow officers. Alvarez was arrested for corruption on December 18, 2007 and is awaiting trial under indictment number 4825-2008. Alvarez is sued in his individual capacity.

9. Police Officer Keith Carpenter is a member of the NYPD's Brooklyn South Narcotics Division who was involved in the arrest of plaintiff and the torts arising out of plaintiff's arrest. Carpenter was acting under color state law and in his capacity as a NYPD officer at all relevant times herein. Carpenter is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from the unlawful conduct of his fellow officers. Carpenter is sued in his individual capacity.

STATEMENT OF FACTS

10. On August 11, 2007, plaintiff was in a car in the Bay Ridge section of Brooklyn, New York.

11. At all relevant times, plaintiff was obeying the law and was not engaged in suspicious activity.

12. When plaintiff stopped at a red light at 71st Street and 14th Avenue, police officers of the Brooklyn South Narcotics Division, including Officers Julio Alvarez and Keith Carpenter, approached plaintiff with guns drawn and seized plaintiff without legal justification.

13. In the course of seizing plaintiff, the officers, acting in concert, yanked plaintiff out of the car, slammed him to the ground, pushed his face onto the ground, twisted his arms, and handcuffed him excessively tight.

14. Plaintiff was subsequently placed into a police van.

15. The officers driving the van drove around for hours looking for more individuals to arrest.

16. Eventually, plaintiff was taken to an unknown police precinct

17. At the precinct, Sean Johnstone a/k/a Undercover Police Officer # 360 falsely stated to the other officers involved in the arrest that plaintiff had sold and possessed narcotics on August 11, 2007, at approximately 5:30 p.m., at 15th Avenue and Bayridge Avenue .

18. Although plaintiff had not committed a crime, Officer Carpenter, pursuant to a conspiracy with Johnstone, Alvarez and the other officers, prepared police reports which falsely stated that plaintiff had sold and possessed a controlled substance on August 11, 2007, at approximately 5:30 p.m., at 15th Avenue and Bayridge Avenue .

19. While plaintiff was confined in the precinct, an unidentified officer strip searched plaintiff and ordered plaintiff to squat, spread his buttocks, lift his testicles, and cough.

20. The aforesaid strip search was illegal because none of the officers involved in plaintiff's arrest had reasonable suspicion to believe that plaintiff was secreting illegal contraband.

21. After the arrest paperwork in the precinct was completed, plaintiff was taken to Brooklyn Central Booking.

22. Plaintiff was confined in Brooklyn Central Booking under filthy, hazardous and deplorable conditions.

23. While plaintiff was confined in Central Booking, Officer Carpenter, pursuant to a conspiracy with Johnstone, Alvarez and the other officers, misrepresented to a prosecutor that plaintiff had sold and possessed a controlled substance on August 11, 2007, at approximately 5:30 p.m., at 15th Avenue and Bayridge Avenue

24. The aforesaid misrepresentation resulted in false felony charges being filed against plaintiff.

25. One August 12, 2007, plaintiff was arraigned in Criminal Court, Kings County. The presiding judge set bail.

26. Because plaintiff was unable to post bail, he was taken to Rikers Island Correctional Facility.

27. During the admission process at Rikers Island, DOC officers, pursuant to a policy, practice and custom of the City of New York, illegally strip searched plaintiff in front of other detainees.

28. Plaintiff subsequently retained a criminal defense attorney.

29. In September, 2007, Johnstone and Carpenter testified before a Grand Jury.

30. Johnstone and Carpenter, pursuant to a conspiracy with the other officers, falsely stated to the Grand Jury that plaintiff had sold and possessed a controlled substance on August 11, 2007, at approximately 5:30 p.m., at 15th Avenue and Bayridge Avenue.

31. The aforesaid misrepresentation led to plaintiff being indicted for sale and possession of a controlled substance.

32. Plaintiff appeared in court several times after he was indicted.

33. On December 21, 2007, the criminal charges filed against plaintiff were dismissed upon motion of the prosecutor.

34. Plaintiff was released from Rikers Island on January 9, 2008.

35. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered emotional distress, mental anguish, fear, embarrassment, humiliation, discomfort, pain, injury, a loss of liberty of several months, and financial loss.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
SEAN JOHNSTONE, POLICE OFFICER
JULIO ALVAREZ, POLICE OFFICER KEITH
CARPENTER, AND JOHN DOES 1-10**

36. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-35 as if fully set forth herein.

37. The conduct of Sean Johnstone, Police Officer Julio Alvarez, Police Officer Keith Carpenter, and John Does 1-10, as described herein, amounted to false arrest, excessive force, an illegal strip search, fabrication of evidence, and malicious prosecution in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST SEAN JOHNSTONE, POLICE
OFFICER JULIO ALVAREZ, POLICE
OFFICER KEITH CARPENTER, AND JOHN
DOES 1-10**

38. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-37 as if fully set forth herein.

39. The conduct of Sean Johnstone, Police Officer Julio Alvarez, Police Officer Keith Carpenter, and John Does 1-10, as described herein, amounted to false arrest,

assault, battery, an illegal strip search, and malicious prosecution in violation of New York state law.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

40. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-39 as if fully set forth herein.

41. The City of New York directly caused the constitutional violations suffered by plaintiff.

42. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that officers employed in the Brooklyn South Narcotics Division and at Rikers Island Correctional Facility are unfit officers who frequently commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

43. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIM AGAINST
THE CITY OF NEW YORK**

44. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-43 as if fully set forth herein.

45. A notice of claim was duly filed on the City of New York within 90 days of the dismissal of the criminal charges filed against plaintiff, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's state law claim of malicious prosecution.

46. Because Johnstone, Alvarez, Carpenter and John Does 1-10 were acting within the scope of their employment as members of the NYPD at all relevant times, the City of New York is vicariously liable under state law for malicious prosecution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: August 7, 2008
Brooklyn, New York

CARDINALE & MARINELLI
26 Court Street, Suite 1815
Brooklyn, New York 11242
(718) 624-9391

By:



RICHARD J. CARDINALE

JS 44 (Rev. 12/07)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

christopher OLIVER

(b) County of Residence of First Listed Plaintiff Kings
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Cardinale & Marinelli, 26 Court St, #1815, Brooklyn, NY 11242
(718) 624-9391

DEFENDANTS

City of New York, SEAN JOHNSTONE, JULIO ALVAREZ,
KEITH CORPENTER

County of Residence of First Listed Defendant Kings
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE LAND INVOLVED.

Attorneys (If Known)

NYC Law Dept., 100 Church St., New York, NY 10007

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business in This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business in Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

- | | | | | | |
|--|--|--|--|--|--|
| ☐ 110 Insurance
☐ 120 Marine
☐ 130 Miller Act
☐ 140 Negotiable Instrument
☐ 150 Recovery of Overpayment & Enforcement of Judgment
☐ 151 Medicare Act
☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans)
☐ 153 Recovery of Overpayment of Veteran's Benefits
☐ 160 Stockholders' Suits
☐ 190 Other Contract
☐ 195 Contract Product Liability
☐ 196 Franchise | PERSONAL INJURY
☐ 310 Airplane
☐ 315 Airplane Product Liability
☐ 320 Assault, Libel & Slander
☐ 330 Federal Employers' Liability
☐ 340 Marine
☐ 345 Marine Product Liability
☐ 350 Motor Vehicle
☐ 355 Motor Vehicle Product Liability
☐ 360 Other Personal Injury | PERSONAL INJURY
☐ 362 Personal Injury - Med. Malpractice
☐ 365 Personal Injury - Product Liability
☐ 368 Asbestos Personal Injury Product Liability
PERSONAL PROPERTY
☐ 370 Other Fraud
☐ 371 Truth in Lending
☐ 380 Other Personal Property Damage
☐ 385 Property Damage Product Liability | ☐ 610 Aggravated
☐ 620 Other Food & Drug
☐ 625 Drug Related
☐ 630 Liquor Laws
☐ 640 R.R. & Truck
☐ 650 Airline Regs.
☐ 660 Occupational Safety/Health
☐ 690 Other | ☐ 422 Appeal 28 USC 158
☐ 423 Withdrawal 28 USC 157
INTELLECTUAL PROPERTY
☐ 820 Copyrights
☐ 830 Patent
☐ 840 Trademark | ☐ 400 State Reapportionment
☐ 410 Antitrust
☐ 430 Banks and Banking
☐ 450 Commerce
☐ 460 Deportation
☐ 470 Racketeer Influenced and Corrupt Organizations
☐ 480 Consumer Credit
☐ 490 Cable/Sat TV
☐ 810 Selective Service
☐ 850 Securities/Commodities/Exchange
☐ 875 Customer Challenge 12 USC 3410
☐ 890 Other Statutory Actions
☐ 891 Agricultural Acts
☐ 892 Economic Stabilization Act
☐ 893 Environmental Matters
☐ 894 Energy Allocation Act
☐ 895 Freedom of Information Act
☐ 900 Appeal of Fee Determination Under Equal Access to Justice
☐ 950 Constitutionality of State Statutes |
|--|--|--|--|--|--|

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 U.S.C. 1983

Brief description of cause:
police misconduct

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

08-3222

ARBITRATION CERTIFICATION

I, Richard J. Cardinale, counsel for plaintiff do hereby
certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages
recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
✓ Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located
in Nassau or Suffolk County: no

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau
or Suffolk County? no

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the
Eastern District? yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than
one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the
claimants, if there is more than one) reside in Nassau or Suffolk County? NO

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

I am currently admitted in the Eastern District of New York and currently a member in good standing of the
bar of this court.

Yes ✓

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ✓

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last
name and the last four digits of your social security number or any other four digit number registered by the attorney
with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: RC-8507

E-MAIL Address: rcardinaleesq@gmail.com

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re
Electronic Filing Procedures(EFP)", and consent to the electronic service of all papers.

Signature: 